United Nations
Educational, Scientific and
Cultural Organization

Intangible
Cultural
Heritage

Workshop on policy development for ICH safeguarding

Unit 55 PowerPoint presentation 1

UNESCO
Intangible Cultural Heritage Section

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In this presentation …

Diverse approaches in State Parties

Challenges in policy-making

Developing ICH-related policies

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Diverse approaches in State Parties

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Policy-making encouraged

Basic Texts of the 2003 Convention for the Safeguarding of the Intangible Cultural Heritage

Article 13

To ensure the safeguarding, development and promotion of the ICH present in its territory, each State Party shall endeavour to:

(a) adopt a general policy …

(d) adopt appropriate legal, technical, administrative and financial measures …

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Policy-making widespread

- In 2011-13, 75% of reporting States Parties (29 out of 41) developed some kind of new ICH safeguarding policy (IOS report, 2013)
- Many ICH-related entries on UNESCO database of national cultural heritage laws http://www.unesco.org/culture/natlaws/index.php
- Many ICH-related entries on World Intellectual Property Organization (WIPO) a database of legislation on Traditional Cultural Expressions and Traditional Knowledge

http://www.wipo.int/wipolex/en/results.jsp?countries=&cat_id=16

http://www.wipo.int/wipolex/en/results.jsp?countries=&cat_id=18

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Diversity in approaches

- Specific ICH policies
- ICH policies integrated into overall culture policies
- Devolved policy arrangements for ICH
- New institutions or directorates responsible for ICH
- Broader mandates of existing institutions responsible for ICH
- Policies for specific ICH elements
- Living Human Treasures policies
- Provisions for specific communities and their ICH

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Why this diversity?

- Regional and international influences;
- Approaches before ratification;
- Interpretations of the Convention;
- Reasons for ratifying the Convention; and
- Socio-political, historical and economic contexts

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UNESCO assistance for policy development in States Parties

1
- Request by State Party to UNESCO
- Needs assessment by advising expert

2
- Consultations with stakeholders
- Policy workshop(s) with stakeholders

3
- Policy development process in the State
- Implementation/revision in the State

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Challenges and opportunities in policy-making

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Challenges and opportunities: a new area

- The Convention and its ODs encourage policy-making but give no detailed guidance or obligation to undertake it
- New area for policy development
- Many vested interests (ICH is the ‘new kid on the block’)

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Challenges and opportunities: different contexts

- Different motivations and contexts for ICH policy-making
- Different policy roles for ‘culture’ as concept
- ICH policy-making intersects with different policy areas
- Complexity of integration into existing policy agendas

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Diverse motivations for ICH policy-making

- Safeguarding ICH to benefit communities
- Development, tourism and innovation
- Diversity and intercultural dialogue
- Public participation and democracy
- Social cohesion, nation-building and identity
- International relations and cooperation
- Recognition and protection of minorities or indigenous groups

ALSO: claiming ownership over ICH nationally or internationally, developing ‘national culture’, etc.

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Diverse roles for culture in public policy

- Culture as the common principles by which everyone in the State should operate
- Culture as a sign of group identity (freedom of association, expression) within a State
- Culture as a reason for giving specific rights or allowing exceptions to rights provisions for certain groups and not others
- Culture as creativity (promoting individual artistry)

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Diverse policy frameworks affect ICH safeguarding

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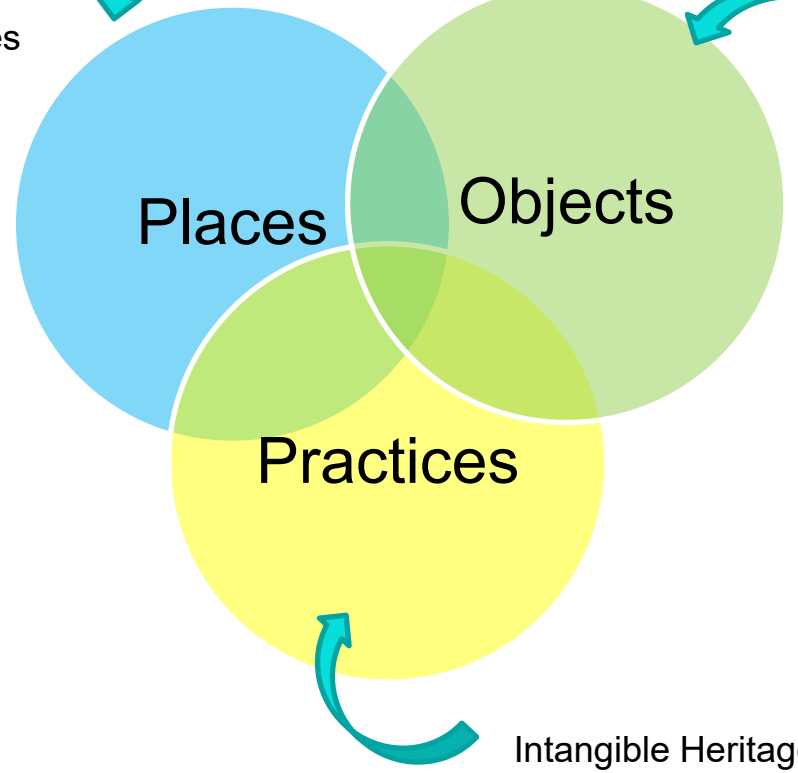
Synergies and tensions between policies

Heritage management policies help conserve historic places



Archives and museums policies help conserve historic objects or documents

Intangible Heritage policies help safeguard ICH practice

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Tatau in Samoa

Wilson “Wiz” Fitiao, is a tatau master and a famous artist in American Samoa. Photo: Vanessa M. American Horse, United States Marine Corps

Who benefits?
Who controls?

- **State**
- **Practitioner(s)**
- **Community (audience)**
- **General Public**

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Challenges and opportunities: budgets and priorities

- Low political priority for culture
- Weak public and community consultation mechanisms
- Weak communication and collaboration within government agencies / administrative centres
- Weak institutional capacities

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Developing ICH-related policies

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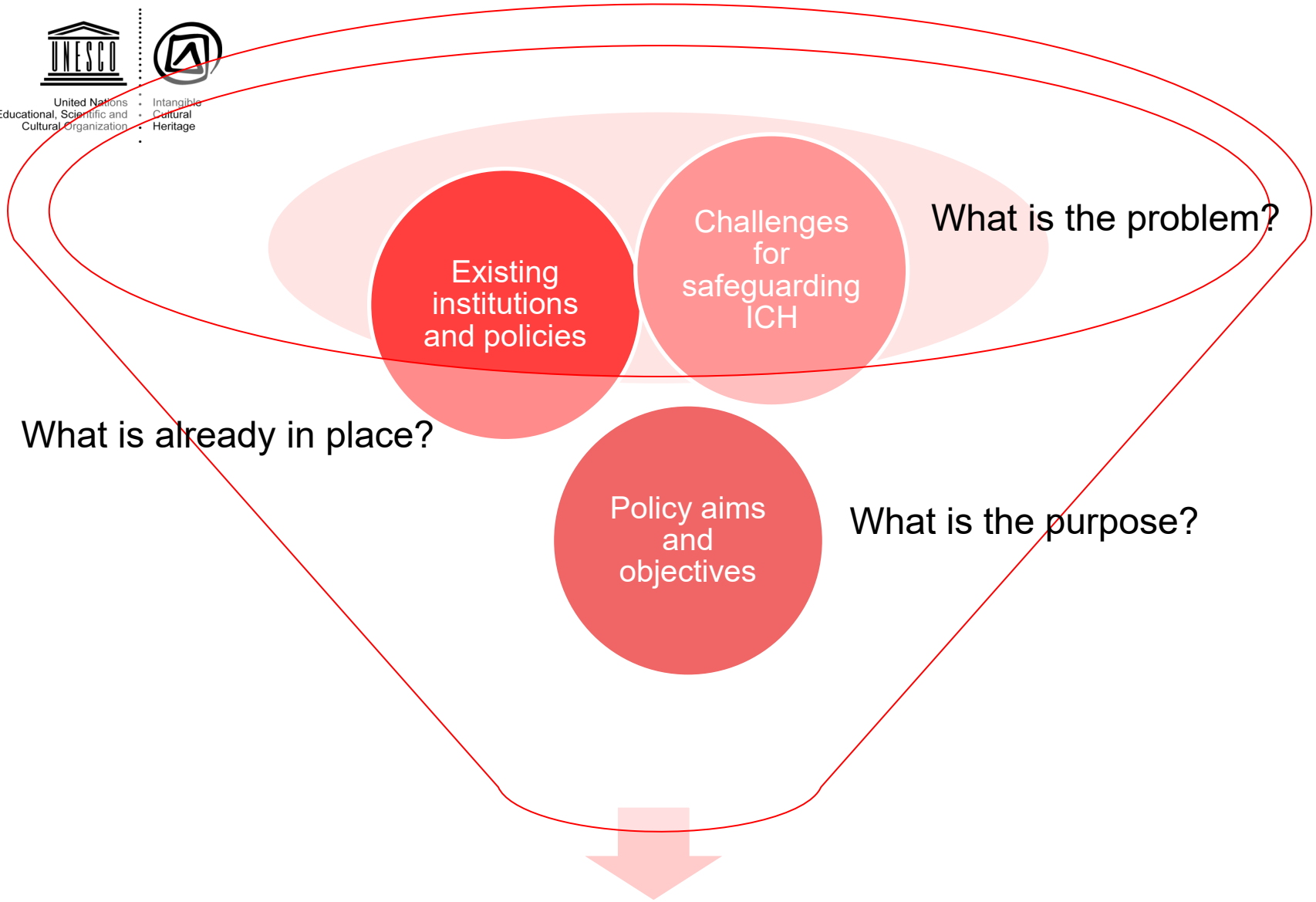

ICH-related policies

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Common questions

1. What is the nature of the ICH in the territory?
2. What is its viability within communities?
3. What safeguarding problems could be addressed through policy-making?
4. What is the existing policy environment and institutional context?
5. Given this context, what changes to policy frameworks might help in safeguarding the ICH?
6. How can these changes be discussed, effected and implemented?

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Policies could include provisions for …

- consultative bodies or coordination mechanisms (OD 80)
- cooperation and networking (ODs 79–80, 86 and 88)
- management of and access to information about the ICH (Article 13(d); OD 109)
- capacity building (13(d)(i) and 14, ODs 82, 86, 107(k) and 109)
- financial support (Article 13(d) and OD 78)
- intellectual property protection (OD 104)
- international sharing of expertise and information (Articles 1(d) and 19, ODs 86–88)

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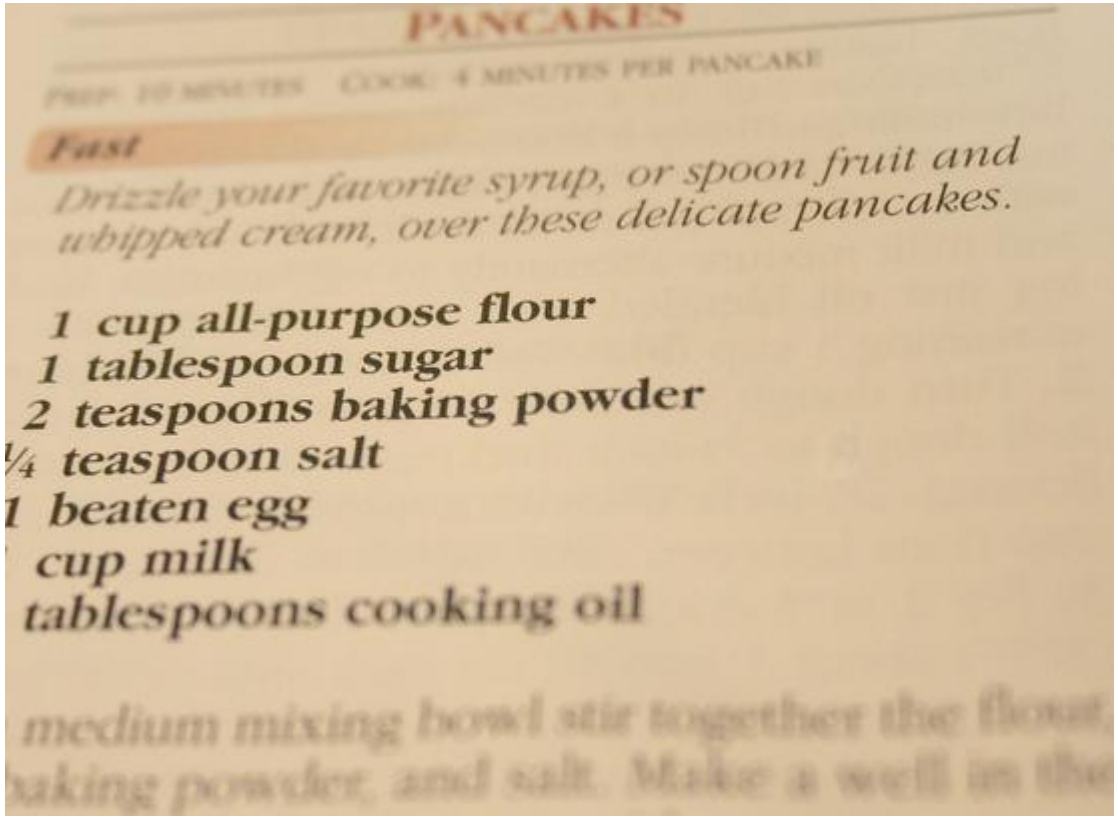
No simple recipe



PANCAKES

PREP: 10 MINUTES COOK: 4 MINUTES PER PANCAKE

Fast

Drizzle your favorite syrup, or spoon fruit and whipped cream, over these delicate pancakes.

1 cup all-purpose flour
1 tablespoon sugar
2 teaspoons baking powder
¼ teaspoon salt
1 beaten egg
cup milk
tablespoons cooking oil

medium mixing bowl stir together the flour, baking powder, and salt. Make a well in the

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Pre-requisites for effective policy-making in the field of ICH

- Participation of communities
- Broad public support
- Political will

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Community participation in policy development

- Consult with the general public about identifying the ICH and associated communities, and general policy measures
- Consult with a diversity of communities and groups, especially those whose ICH is endangered or marginalized, about specific measures for ICH safeguarding
- Ensure that representatives of communities have appropriate mandates and are given the opportunity to consult with their constituencies

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Community participation in implementation of policies

- Establish ways to ensure participation of a diversity of communities, groups and individuals
- Develop and implement codes of ethics and other measures to ensure that communities concerned retain stewardship of and benefit from their ICH
- Establish mechanisms to ensure representatives of communities have appropriate mandates
- Establish mechanisms to ensure free, prior and informed consent of communities in regard to any safeguarding activities relating to their ICH

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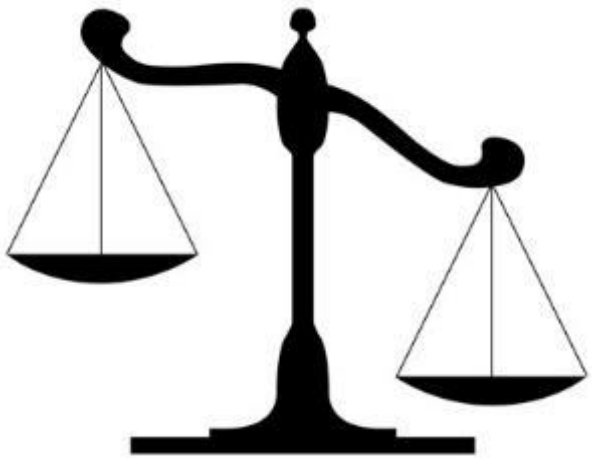
Balance different policy aims



Faro convention, for example:

Article 4a. ‘exercise of the right to cultural heritage may be subject only to those restrictions which are necessary in a democratic society …’

Article 12d. ‘take steps to improve access to the heritage …’

Article 14.c ’resolve obstacles to access … whilst protecting intellectual property rights’

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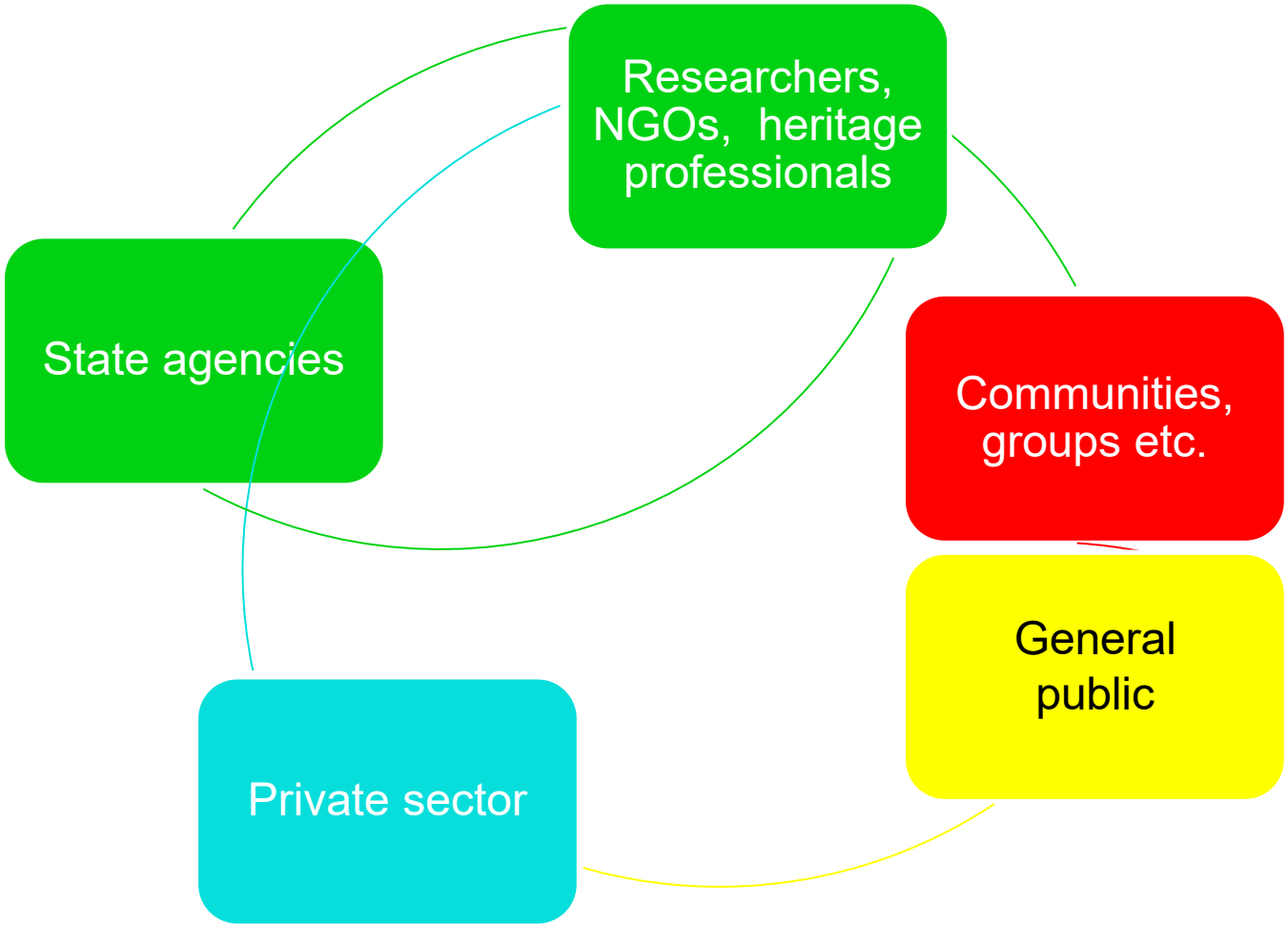
Balancing different interests while ensuring community stewardship



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Other factors for policy success

- Evidence-based
- Feasible
- Effective

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Reiterative policy development

- Pilot projects testing policy approaches in different contexts
- Explore impacts
- Adjust policy
- Refine approaches
- Develop policies
- Monitor and evaluate
- Adjust policies

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When all you have is a hammer, every problem looks like a nail

It may be important to look for new and innovative approaches.

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Published in 2016 by the United Nations Educational, Scientific and Cultural Organization, 7, place de Fontenoy, 75352 Paris 07 SP, France

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